

**CHAPTER viii.**

An Act to amend the Mersey Railway Act 1900 and for other purposes. A.D. 1915.
[19th May 1915.]

WHEREAS by the Mersey Railway Act 1900 (in this Act called "the Act of 1900") the Mersey Railway Company (in this Act called "the Company") were authorised to work their railways by electricity in place of or in addition to steam power and to create and issue four hundred and twenty-eight thousand seven hundred and fifty pounds new first debenture stock for the equipment of the railways for electric working and the purchase of the necessary plant rolling stock and machinery and in order to facilitate the raising of such additional capital to apply the proceeds of part thereof not exceeding seventy-eight thousand seven hundred and fifty pounds in payment at any time within five years from and after the thirty-first day of December one thousand nine hundred of the interest which might from time to time have accrued and which the net revenues of the Company might not be sufficient to meet on the issued portions of the new first debenture stock of the Company as authorised by the Act of 1900:

And whereas the Company were by the Mersey Railway (Capital) Act 1898 authorised to create and issue two hundred and seventy-five thousand pounds of debenture stock:

And whereas the Company have under the powers conferred upon them by the Act of 1900 created debenture stock to the amount of seven hundred and three thousand seven hundred and fifty pounds being the aggregate of the said amounts of four hundred and twenty-eight thousand seven hundred and fifty pounds and two hundred and seventy-five thousand pounds as "Mersey Railway new first perpetual debenture stock" and have issued the same to the amount as at the thirtieth day of

A.D. 1915. June one thousand nine hundred and fourteen of six hundred and sixty-nine thousand three hundred and eighty-eight pounds:

And whereas to further facilitate the raising of the said additional capital the payment of interest on the debenture stocks of the Company numbered in priority 1 2 3 and 4 in the Schedule to the Act of 1900 was by the Act of 1900 made contingent as from and after the thirty-first day of December one thousand nine hundred until the thirty-first day of December one thousand nine hundred and five on the revenue of the Company available therefor in each separate year and a right to appoint one director of the Company until the said last-mentioned date was conferred on the holders of each class of such debenture stocks:

And whereas by the Mersey Railway Act 1906 (in this Act called "the Act of 1906") the periods limited as aforesaid were extended until the thirty-first day of December one thousand nine hundred and ten:

And whereas by the Mersey Railway Act 1910 (in this Act called "the Act of 1910") the periods limited as aforesaid were further extended until the thirty-first day of December one thousand nine hundred and fifteen:

And whereas the Company have equipped the railways for electric working and they are now worked by electric energy with the result that there has been a substantial increase of traffic on the railways and it is expedient that pending the fuller development thereof the said periods should be further extended as hereinafter provided:

And whereas it is expedient that in determining for the purposes of paragraph 2 of the Schedule to the Act of 1900 what revenue is available for the payment of interest on the stocks and shares of the Company therein referred to the directors be authorised to allow a reasonable sum in each separate year for depreciation and renewals of the electrical plant rolling stock and permanent way of the Company:

And whereas the holders of upwards of three-fourths in value of each class of such last-mentioned debenture stocks have consented in writing to the provisions of this Act:

And whereas portion of certain premises known as the Lyceum Liverpool are occupied by the Company under the agreement made the tenth day of July one thousand eight hundred and eighty-nine between the proprietors of the Lyceum Liverpool

and the Company scheduled to and confirmed by the Mersey Railway Act 1889 which agreement expires on the first day of July one thousand nine hundred and nineteen and it is expedient that the agreement between the said proprietors of the Lyceum Liverpool and the Company set forth in the Schedule to this Act extending the Company's occupation of such portion of the said premises should be confirmed: A.D. 1915.

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Mersey Railway Act 1915. Short title.

2. The sections of and the paragraphs of the Schedule to the Act of 1900 hereinafter mentioned shall be amended and the periods thereby respectively limited and by the Acts of 1906 and 1910 extended shall be further extended as follows (that is to say):— Further extension of periods limited by Act of 1900.

Section 25 (Application of funds) shall be read and have effect as if the words "twenty years" had been inserted therein instead of the words "five years":

Section 27 (Confirming scheme of arrangement) and the scheme of arrangement set out in the said schedule shall be read and have effect as if the words "until the thirty-first day of December one thousand nine hundred and twenty" had been inserted in paragraphs 2 and 6 of the said schedule instead of the words "until the thirty-first day of December one thousand nine hundred and five":

Section 28 (Additional directors representing debenture stockholders) shall be read and have effect as if the words "the thirty-first day of December one thousand nine hundred and twenty" had been inserted in subsections (6) and (8) thereof instead of the words "the thirty-first day of December one thousand nine hundred and five."

3. Trustees executors administrators and all other holders in any representative or fiduciary capacity of any of the debenture stocks of the Company are hereby expressly authorised to give and shall incur no liability whatsoever for giving or having given Indemnity to trustees &c.

A.D. 1915. — their consent or consents to the provisions of the immediately preceding section and to the promotion of the Bill for this Act.

Depreciation
and renewal
allowances.

4. The directors notwithstanding anything in paragraph 2 of the Schedule to the Act of 1900 contained may in determining for the purposes of that paragraph what revenue is available for the payment of interest on the debenture stocks of the Company numbered in priority 1 2 3 and 4 in the said schedule allow in each separate year such sum as they shall think reasonable not exceeding in any year the sum of three thousand pounds for depreciation and renewals of the electrical plant the rolling stock and the permanent way of the Company.

Scheduled
agreement
confirmed.

5. The agreement made the fifteenth day of December one thousand nine hundred and fourteen between the proprietors of the Lyceum Liverpool of the one part and the Company of the other part set forth in the Schedule to this Act is hereby confirmed and made binding on the said proprietors and the Company respectively.

Provision as
to general
Railway
Acts.

6. Nothing in this Act contained shall exempt the Company or the railways of the Company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Costs of Act.

7. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may be paid out of the Mersey Railway new first perpetual debenture stock authorised by the Act of 1900 or out of the moneys to be raised by the issue thereof as if the payment of such costs were specified in section 25 (Application of funds) of the said Act as part of the purposes to which such debenture stock or moneys might be applied.

The SCHEDULE referred to in the foregoing Act. A.D. 1915.

AN AGREEMENT made the fifteenth day of December one thousand nine hundred and fourteen between the PROPRIETORS OF THE LYCEUM LIVERPOOL (hereinafter called "the proprietors") of the one part and the MERSEY RAILWAY COMPANY (hereinafter called "the Company") of the other part.

WHEREAS the Company have made a proposal to the proprietors for a further lease on the terms hereinafter contained of the portion of the Lyceum basement now in the occupation of the Company under an agreement with the proprietors dated the tenth day of July one thousand eight hundred and eighty-nine for the purposes of railway offices and conveniences :

And whereas at a meeting of the committee of the proprietors convened and held at the Lyceum on the fourth day of December one thousand nine hundred and fourteen for the purposes of considering the proposal of the Company the following resolution was duly passed:—

"That the tenancy of the Mersey Railway Company of that portion of the basement of the Lyceum occupied by them under an agreement for a lease dated 10th July 1889 be extended for a term of 25 years from the 1st July 1919 at a rent for such extended term of £500 per annum and upon the conditions contained in the said agreement of the 10th July 1889 so far as the same are now applicable And that the secretary be authorised to execute the agreement for such further lease " :

And whereas at a meeting of the trustees of the Lyceum duly convened and held at the Lyceum on the seventh day of December one thousand nine hundred and fourteen the following resolution was duly passed:—

"That this meeting of trustees of the Lyceum Liverpool approves of the renewal of the lease to the Mersey Railway Company for a further 25 years at £500 per annum from 1st July 1919 " :

Now this agreement witnesseth that the said parties hereto mutually agree that the proprietors shall grant and the Company shall take a lease of that portion of the Lyceum basement comprised in the said agreement of the tenth day of July one thousand eight

A.D. 1915. — hundred and eighty-nine for the purpose of railway offices and conveniences upon the terms and conditions hereinafter contained (that is to say):—

1. A lease to be granted for a term of twenty-five years from the first day of July one thousand nine hundred and nineteen The rent to be five hundred pounds per annum and to be payable by equal half-yearly instalments and the first of such payments to be made on the first day of January one thousand nine hundred and twenty.

2. The Lyceum Proprietors to be at liberty at any time to build over the Company's entrance in Lyceum Place leaving the Company a clear headway sixteen feet above the street level.

3. The lease and counterpart to be drawn up and submitted by the Company containing all proper and necessary provisions for protecting the interests and comforts of the proprietors of the Lyceum and their tenants and all other usual provisions.

4. The Company to indemnify the proprietors and the committee and officers thereof against all actions and suits at law or equity (including all costs) that may be brought against the proprietors or the committee or officers thereof or any of them in respect of the said tenancy or alterations in the Lyceum building or any part thereof or in respect of the granting of such lease or the making of this agreement.

5. The Company to bind itself not to seek at any time hereafter Parliamentary powers to acquire the present Lyceum buildings without the proprietors' consent.

6. The Company to keep the whole of the demised premises in a good and tenantable state of repair during the said term.

7. The Company to pay all existing and future rates taxes assessments and outgoings for the time being payable in respect of the said demised premises to execute all reasonable requirements of the sanitary authorities in respect of their tenancy of the said premises which shall be legally demanded not to assign underlet or part with the possession of the said premises or any part thereof without the consent in writing of the proprietors but such consent shall not be withheld to any assignment or underletting to responsible assignees or undertenants and no fine or premium shall be paid or demanded for any such consent and not to make any further structural alterations whatever in or about the said premises without the consent in writing of the proprietors.

8. The Company to allow or provide an entrance from the adjoining premises of the Lyceum to the passage to the booking office in such manner however that the same shall not interfere with the arrangements of the Company.

A.D. 1915.

9. Provided always and it is hereby expressly agreed and declared that if any part of the said rent shall be in arrear for forty days after any of the days on which the same is hereby made payable whether legally demanded or not or if there shall be a breach of any of the agreements herein contained on the part of the Company which the Company shall refuse or neglect to rectify after reasonable notice in writing then and in any of such cases it shall be lawful for the proprietors either—

- (a) To enter upon the said premises and prevent further use occupation and enjoyment thereof by the Company their agents servants workmen and passengers until such time as the rent shall be paid or other agreement herein shall be duly observed and performed by the Company without prejudice to the continuance of the tenancy hereby created; or
- (b) To re-enter upon the said premises and determine the tenancy without prejudice to the liability of the Company for payment of rent and observance and performance of the agreements herein And such entry may be made by the duly authorised agents of the proprietors by effecting forcible entry upon the said premises and for that purpose they shall be entitled to break and force open any door or fences and without the necessity of bringing an action of ejectment or taking any proceedings at law for the recovery of possession of the said premises.

10. The Company to pay all the reasonable costs charges and expenses of the proprietors in connection with the negotiation preparation and completion of this agreement and of the said lease and of such matters and things as may be incidental thereto or necessary to be done in order to carry out the terms of this agreement.

11. This agreement is made by the proprietors subject to the Company obtaining such consents as may be legally necessary in order to give validity hereto or to meet any requirements of the Company and the proprietors shall not be held responsible if this agreement is impeached or in any other way rendered ineffectual.

12. If any questions shall arise between the parties as to the construction of this agreement or as to any of the clauses or conditions of the said lease or in any way whatever the same shall from time to time be referred to an arbitrator to be appointed by the President for the time being of the Incorporated Law Society of Liverpool.

13. This agreement is made subject to such alterations as Parliament may think fit to make therein but in the event of either House

A.D. 1915. of Parliament making any material alteration therein either party may
— withdraw from the agreement.

In witness whereof the Lyceum Proprietors have hereto set their hands and the Company have caused their common seal to be affixed the day and year first above written.

By order of the committee for and on behalf of the proprietors of the Lyceum.

JOHN DEAN Secretary.

The common seal of the said Mersey Railway Company was hereto affixed in the presence of

J. SHAW Secretary.

Seal of
the Mersey
Railway
Company.

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